

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RAFAEL LOPEZ,

Plaintiff,

-against-

CITY OF NEW YORK; P.O. ANDRES GOMEZ, Shield
No. 18894, individually and in his/her official capacities;
and NYPD Officers JOHN and JANE DOE 1 through 10,
individually and in their official capacities (the names John
and Jane Doe being fictitious, as the true names are
presently unknown),

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
July 16, 2019

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
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New York, New York 10279
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SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. Andres Gomez, Shield No. 18894
737 Melrose Avenue
Bronx, New York 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Defendants.

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PLAINTIFF RAFAEL LOPEZ, by PLAINTIFF'S attorney, the LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. PLAINTIFF RAFAEL LOPEZ, is a Hispanic male and has been at all relevant times a resident of Bronx County in the City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

VERIFIED COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendants, P.O. ANDRES GOMEZ, Shield No. 18894; and NYPD Defendants, John & Jane Doe 1 through 10, (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

STATEMENT OF FACTS

8. On or about October 31, 2016 at or around 10:30 p.m., PLAINTIFF was lawfully within the vicinity of 745 East 152nd St., Bronx, New York.

9. PLAINTIFF and his friends were walking in the aforementioned location when they observed a large group of people being loud and arguing.

10. PLAINTIFF and his friends walked in opposite directions to avoid a confrontation.

11. Several unidentified New York City Police Officers, including defendants GOMEZ, and the DOE defendants, approached PLAINTIFF and his companions.

12. The officers unlawfully stopped and searched PLAINTIFF and his friends, despite the fact that they had no reasonable suspicion or other lawful basis to do so.

13. Defendants recovered no contraband from PLAINTIFF.

14. The officers called for other police officers in order to identify PLAINTIFF and his friends.

15. Notwithstanding the fact that defendants had no probable cause to believe that PLAINTIFF had committed any crimes or offenses, defendants placed PLAINTIFF and his friends into handcuffs and under arrest, along with a group of people unknown to PLAINTIFF.

16. PLAINTIFF was subsequently transported to the police precinct, where he was informed he was arrested for disorderly conduct.

17. At the precinct the officers, including defendant GOMEZ and falsely informed employees of the Bronx County District Attorney's Office ("DA's Office") that they had observed PLAINTIFF commit various crimes/offenses.

18. Specifically, defendant GOMEZ falsely claimed that PLAINTIFF and his friends were blocking the sidewalk yelling, cursing, striking each other with closed fists multiple times, striking each other with sticks, and pushing each other and failed to disperse when ordered.

19. Neither GOMEZ nor the DOE defendants observed PLAINTIFF violate any laws / ordinances.

20. The allegations made by defendants to the DA's Office were false, and the defendants knew them to be false at the time they made the allegations.

21. The defendants then forwarded these false allegations to the DA's Office in order to justify the unlawful arrest of PLAINTIFF and to persuade the DA's Office to commence and/or continue the criminal prosecution of PLAINTIFF.

22. The defendants knew and understood that the DA's Office was relying on the truthfulness of defendants' claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFF. Defendants were aware that the DA's Office assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

23. From the precinct, PLAINTIFF was then transported to Central Booking, and was falsely imprisoned for an extended period of time.

24. After making several court appearances, PLAINTIFF accepted an ACD and his criminal case was subsequently dismissed on or about January 17, 2018.

25. PLAINTIFF suffered damage as a result of defendants' actions. PLAINTIFF was deprived of liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and reputational damage.

CLAIM ONE
Under State and Federal Law
UNLAWFUL STOP, SEARCH, AND SEIZURE

27. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

28. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

CLAIM TWO
Under State and Federal Law
FALSE ARREST

29. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

30. Defendant police officers arrested PLAINTIFF in the absence of probable cause and without a valid warrant.

31. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFF's rights.

CLAIM THREE
Under State and Federal Law
MALICIOUS ABUSE OF PROCESS

32. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

33. The individual defendants issued legal process to place PLAINTIFF under arrest.

34. The Municipal Defendants arrested PLAINTIFF in order to obtain collateral objectives outside the legitimate ends of the legal process.

35. The Municipal Defendants acted with intent to do harm to PLAINTIFF without excuse or justification.

36. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

CLAIM FOUR
Under Federal Law
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

45. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

46. Defendants created false evidence against PLAINTIFF.

47. Defendants forwarded false evidence and false information to prosecutors in the DA's Office.

48. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

49. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

50. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, was put in fear for PLAINTIFF'S safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

CLAIM FIVE
Under Federal Law
FAILURE TO INTERVENE

51. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

52. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

53. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

54. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM SIX
Under State Law
ASSAULT and BATTERY

55. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

56. Defendants' aforementioned actions placed PLAINTIFF in apprehension of imminent harmful and offensive bodily contact.

57. Defendant police officers touched PLAINTIFF in a harmful and offensive manner.

58. Defendant police officers did so without privilege or consent from PLAINTIFF.

59. As a result of defendants' conduct, PLAINTIFF has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

CLAIM SEVEN
Under Federal Law
DEPRIVATION OF FEDERAL RIGHTS

60. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

61. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

62. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

63. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

64. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

65. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM EIGHT
Under State Law
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

66. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

67. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

68. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

69. Due to the negligence of the defendants as set forth above, PLAINTIFF suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation, shock, fright, and loss of freedom.

CLAIM NINE
Under Federal Law
MUNICIPAL LIABILITY

76. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

78. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

79. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

80. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

81. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the PLAINTIFF as alleged herein.

82. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

83. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFF's constitutional rights.

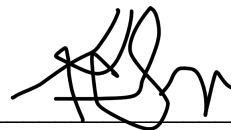
84. The acts complained of deprived the PLAINTIFF of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
July 16, 2019



Katherine E. Smith
233 Broadway, Ste. 900
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorney for PLAINTIFF RAFAEL LOPEZ in the within entitled action.

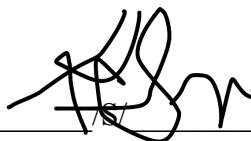
That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the PLAINTIFF is that the PLAINTIFF is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
July 16, 2019



Katherine E. Smith